

The Indoor Use of low power Equipment in the frequency band 2.4 GHz to 2.4835 GHz (Exemption from Licensing Requirement) Rules, 2004

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UNION OF INDIA

India

The Indoor Use of low power Equipment in the frequency band 2.4 GHz to 2.4835 GHz (Exemption from Licensing Requirement) Rules, 2004

Rule

THE-INDOOR-USE-OF-LOW-POWER-EQUIPMENT-IN-THE-FREQUENCY-BAND-2-4-GHZ-TO-2-4835-GHZ-EXEMPTION-FROM-LICENSING-REQUIREMENT-RULES-2004 of 2004

Published on 25 August 2004

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The Indoor Use of low power Equipment in the frequency band 2.4 GHz to 2.4835 GHz (Exemption from Licensing Requirement) Rules, 2004

Published vide Notification No. G.S.R. 542(E), dated 25th August, 2004

Ministry of Communications and Information Technology
(Wireless Planning and Coordination Wing)

G.S.R. 542(E). - In exercise of the powers conferred by sections 4 and 7 of the Indian Telegraph Act, 1885 (13 of 1885

) and section 4 and 10 of the Indian Wireless Telegraphy Act, 1933 (17 of 1933) and in supersession of the "Indoor Use of Wireless LAN (W-LAN) Equipment using Bluetooth and IEEE 802.11b Standard in 2.4 GHz band (Exemption from Licensing Requirement) Rules, 2003", except as respect things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:

1.

Short title and commencement.

(1)

These rules may be called the Indoor Use of low power Equipment in the frequency band 2.4 GHz to 2.4835 GHz (Exemption from Licensing Requirement) Rules, 2004.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Indian Telegraph Act, 1885 (13 of 1885

);

(b)

Effective Radiated Power (ERP) includes the gain of the antenna, if any;

(c)

Words and expressions used in these rules and not defined, but defined in the Act and the Indian Wireless Telegraphy Act, 1933 (17 of 1933), shall have the same meanings respectively as assigned to them in those Acts.

3.

Use of wireless equipment in the band 2.4 GHz to 2.4835 GHz.

- Notwithstanding anything contained in any law for the time being in force, no licence shall be required by any person to establish, maintain, work, possess or deal in any wireless equipment in the frequency band 2.4 GHz to 2.4835 GHz with the power, Effective Radiated Power, type of antenna and coverage area as specified in the Table given below; namely ;-

Table

Maximum radiated power output

Maximum Effective Radiated Power

Type of Antenna

Coverage Area

(1)

(2)

(3)

(4)

100 mW (20 dBm) in Spread of 10 MHz

26 dBm

Built in or indoor antenna

Within the single contiguous campus of an individual, duly recognized organization or institution.

4.

Interference.

- The effect of unwanted energy due to one or a combination of emissions, radiations or induction upon reception in a radio communication system, manifested by any performance degradation, misinterpretation, or loss of information

which could be extracted in the absence of such unwanted energy. In case where any person to whom a licence has been issued under section 4 of the Act informs that his licensed system is getting harmful interference from any other radio communication system exempted under these rules, the indoor use of such unlicensed Wireless equipment shall be discontinued forthwith.

5.

Equipment.

(1)

The wireless equipment shall be type approved and designed and constructed in such a manner that the bandwidth of emission and other parameters shall conform to the limits specified in the Table referred to in rule 3.

(2)

The application for obtaining Equipment Type Approval shall be made to the Central Government in such form as may be specified by that Government in this behalf.

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